THE REPUBLIC OF CORTESIA DEL MAR
SUPREME COURT
In the matter between:
VORTEXION
&
STAR_LITTY & ASTROBOLT
(with various parties intervening)

CASE DETAILS:
CASE NUMBER: 6
COURT: IceCarim ACJ
DATE: 6 October 2024 (GMT)

CASE TEXT:

Vortexion:
Ehem
Mr ice carim your most supreme honor sir
I'd like to file an official report and let it be known on record that I strongly disagree with star_litty and astrobolt (or any other non-cortesian citizen) applying for a spot in the presidency
It is my strong personal conviction that any one or more persons already functioning in an administrative capacity in another nation's government should be disallowed access to presidential candidacy
As no one or more persons should hold administrative powers over any more than one (1) governmental system

IceCarim:
Mr @Vortexion (ass edition) is this a challenge to their candidacy?
Or are you just stating an objection but not instituting legal proceedings

Vortexion:

I only wish to challenge it if it becomes clear that they will win, otherwise, I only state an objection to this ruling (that Residents be available for presidency)

Astrobolt:
🤓 is it in the constitution tho
We are citizens 🙂
Your honor I hereby file for the previous complaint to be dismissed at once. Barring us from running holds no constitutional basis.
As written by the complainer, "I only wish to challenge it if it becomes clear that they will win." Truly I say, does this person have the best interests of Cortesia in mind? Why not challenge now? Further I say this is simply using the courts to create the desired outcome by vortexion.
Lastly I do say, vortexion wrote, "I only state an objection to this ruling (that Residents be available for the presidency)". Your honor, vortexion does not even know who is a citizen and who is not a citizen. Let it be noted for the record that star_litty and myself are full citizens, and let it further be noted that vortexion failed to do this most basic research and created a frivolous lawsuit.

Vortexion:
Objection your honor, defendant is yapping
Please refer to this, which is the crux of my displeasure with their candidacy

Astrobolt:
I raise Cortesian Constitution § 85 §§ 5. Anyone with basic familiarity of the cortesian constitution should understand this is not a disqualifying factor. My call for the complaint to be dismissed at once stands, as it holds no constitutional basis whatsoever.

Vortexion:
My brother in cortesia, YOU are already part of another government
So is your +1
If you step into power, Cortesia practically becomes a puppet nation

Astrobolt:
Please refer to the constitution of Cortesia del Mar
Article V, passim, makes no exclusion to this possibility. Your complaint has no constitutional basis, which is what is to be addressed here.

IceCarim:
There is no application before the Court, so we make no ruling on whether a candidate holding foreign office may run for President in Cortesia.

As for the objection to star and astro's candidacy, I decide in my role as the administrator of the election that the ticket is validly registered. The objection is dismissed.

star_litty:
@Astro: Wall of Text edition pop off queen

Vortexion:
I wish to make an application before the court, then
It is beyond absurd that a member of a foreign government may meddle in the Cortesian government in any way, shape or form

Astrobolt:
I motion for the application and the case at large to be dismissed at once on the grounds outlined in the replied message and the constitutional notes in the following messages regarding § 85 §§ 5 and Article V, passim. I further assert frivolity based on the fact that Vortexion (ass edition) did not even know we are citizens at the start of this whole thing, failing to do even the most basic research before bringing this matter to the court's attention.

IceCarim:
are there any constitutional provisions barring star and astro from running?
is there any way the constitution can be interpreted to have that result?
(this is a different question)

and why is this necessarily a problem? the president of france, for example, is the co-prince of andorra
the king of england has constitutional powers in australia, canada, and new zealand
the historic reasons for those powers are different, true, but the Court would like to know what the functional difference would be in this case

Vortexion:
It's quite obviously a problem, because as foreign actors, people who serve administrative roles in other governments may easily sway the Cortesian nation towards exploitation of its people and resources. Put otherwise, they have no reason to serve the Cortesian nation's best interests and, assuming their allegiance to their own government, present themselves as a liability wherein they may choose to exploit the Cortesian nation for the foreign government's own benefit.

Astrobolt:
So what about the constitution part of it

star_litty:
bro
no way we're getting painted as bad guys
I'm incredibly loyal to the cortesian government and your claims of exploitation are rude and harmful to radiance and its government
what are we gonna persuade you to do?? we have the same beliefs. what are we going to exploit?? we have huge sums of money and resources.
I have an allegiance to protect my friends and loved ones from harm, I am loyal to Cortesia.
radiance has no want or desire to exploit or steal cortesian resources, money, or machines. we don't need it or want it, woolsworth has little appeal to us because we aren't militaristic.
and honestly you making these claims is just mean dude and uh unconstitutional

Astrobolt:

@IceCarim since vortexion (ass edition) has failed to provide any constitutional basis for his claims after multiple times of being asked, I motion to have this dismissed at once. There is no legal basis for any of this and it is being dragged on by vortexion (ass edition) dodging the relevant questions. There is simply no constitutional basis
What vortexion (ass edition) brings up over and over again is nowhere in the constitution and should be decided through the people in an election, not through the courts.
And I not then I demand an explanation from the court on why it feels the need to continue to entertain such a frivolous case and act in place of the citizens in an election

Vortexion:
It's not against you specifically, you just happen to be the first (and only) case of this happening
I would've objected to you the same I would've objected to Gold or someone else
It's not about what you, specifically, by name might do, it's about what someone else with less than benign intentions might do
That, and I refuse to humor the thought that one person could effectively and efficiently fulfill two governing positions' duties at once

Astrobolt:
Still no constitutional basis for your claims
Yet again
Let the people decide it, stop trying to get the courts to remove your opponents from the race. So undemocratic

Vortexion:
90% of my arguments here were just for shits and giggles but this part right here is 100% meant as-written

Astrobolt:
Once again, you are refusing to answer the court's question about the constitution

Vortexion:
I'm not discussing the constitution
Lol

Astrobolt:
Well the court specifically asked about it

CommradePotatoe:
This appears more as a question of legislation imo

Astrobolt:
Genuinely
Stop trying to get rid of your opponents using the courts and subverting the will of the people

IceCarim:
I have a question: Suppose a candidate, doesn't matter if it's a foreign leader or someone who's been a CDM citizen all their life, says throughout their campaign that they're going to abolish the Constitution and give away state secrets to other nations if they're elected. Would there be a legal basis to deny this candidate access to the ballot? Perhaps a basis not rooted in a specific constitutional provision, but the objective value system created by the Constitution?
Image
Or to put it another way, if there is a candidate that stands adamantly against the Constitution, is it appropriate to protect the Constitution by preventing that candidate from standing for election?
Do we tolerate the intolerant in the name of tolerance?

Astrobolt:
That is a matter for the people to decide through direct election. Letting government powers decide it opens the door to people like vortexion creating their own false interpretations of other people's policies and removing them from the race

3a and b can easily be handled through voting
Or do we not trust citizens enough and not think they are smart enough to make the right choice?

ItsAlreadyGold:
I say nay!

CommradePotatoe:
Your honor I would say yes to this
I don't have much stake in these proceedings but yeah, if someone was actively campaigning on being a threat to this nation, I think there would be a possibility that they could be disqualified. It would require someone to prove it beyond any and all reasonable doubts, but I think it's possible

ItsAlreadyGold:
I do like scar and astro, and at the same time I think Vort has a valid point here

Astrobolt:
Are we going to insult the citizens more and say they are too stupid to make sure malicious candidates don't win?

CommradePotatoe:
I'd also like to add to the general discussion that this appears to be more a political discussion about how things should be done, not an interpretation of any law

ItsAlreadyGold:
to me, it only makes sense to only allow someone to be president or vice president if they are actually in the in game nation

CommradePotatoe:
Agreed

ItsAlreadyGold:

it's just too important

Astrobolt:
Then add it to the constitution or make a law about it
But it's not a matter for the courts to decide

ItsAlreadyGold:
well yes, that's why I'm here
ehhhhh

CommradePotatoe:
I agree
This is up to the forum

ItsAlreadyGold:
yeah I guess I just like talking the government stuff isn't fully my business

Astrobolt:
Right now this is just an abuse of government systems by vortexion to reduce the number of opponents

ItsAlreadyGold:
I disagree
again, he has valid points here
as much as I like you and scar and myself, I do not think anyone not in cortesia should be able to become president

IceCarim:
I'm not inclined to believe this issue is beyond the reach of the Constitution

Astrobolt:
And another thing, who is going to decide what is against the constitution?
This opens the door for people in power to retain power through silencing opponents

IceCarim:
and where the Constitution reaches, this Court can reach

CommradePotatoe:
The acting chief justice can

Astrobolt:
Then if you're keeping the case, my request stands

CommradePotatoe:
It’s this Supreme Court that interprets our constitution and it’s laws

IceCarim:
The Supreme Court will take this case on direct access. Reasons will be given in judgment
in the meantime, I invite all submissions from interested parties

CommradePotatoe:
I’m not a judge in this case
But personally I believe for the same reason we entertained the whole residential suffrage thing
Despite it being clearly unconstitutional, this court allowed proceedings to well, proceed, that way everyone’s voice can be heard
Again, I’m not a judge
So that is only my personal opinion

Astrobolt:
Ok well if I'm answering questions, I think it is only fair that @Vortexion (ass edition) answer the clearly stated questions from earlier about how me and star are violating the constitution by running
Instead of ignoring the questions that were asked

IceCarim:
I do appreciate your submissions so far. They've been very helpful to the Court

Astrobolt:
Or will he continue to fail to answer the court's questions?

CommradePotatoe:
It’s the Court that should be asking the questions

Astrobolt:
The court did ask the questions
And vort continues to refuse and fail to answer
Why isn't he cooperating?

IceCarim:
I think the core issue is really this: We can accept as a general proposition that a foreign leader may have a conflict of interest if they become the leader of another nation. This isn't to cast aspersions on anyone, and I think it states quite an uncontroversial possibility.

Is this possibility serious and likely enough to raise the constitution's inherent need to protect the nation's integrity, whether that is viewed as sovereignty, independence, civil suffrage, or democracy?

CommradePotatoe:
Well that answers my question as to what this general case is about

ItsAlreadyGold:
no need to villianize him like this

s1ice:
why is this the second time i wake up to heavy political discourse in cortesia del mar

CommradePotatoe:
Oh slice
You should have been here when we were building concord

s1ice:
good morning create cortesian imperialism

CommradePotatoe:
Good morning slice of pie

Astrobolt:
All I'm doing is pointing out that he isn't answering the court's questions

s1ice:
i mean i made some buildings in it
post-founding

IceCarim:
Or when we debated whether to move to Civ or Loka lmao

CommradePotatoe:
I think that was before my time
I don’t wanna know
Then that’ll affect the cases outcome

s1ice:
i don’t wanna read the billion messages can someone tldr

Astrobolt:
Tldr vort thinks is making a case that me and scar shouldn't be allowed to run for pres and vp

s1ice:
you’re running for president ??

Astrobolt:

And he is citing principles that imo should be decided by the voters, and is failing to cite any parts of the constitution that support his case

s1ice:
lmao
why are you running for president of cdm

CommradePotatoe:
Isn't Astro vp?

Astrobolt:
Yes

s1ice:
you (plural)

Astrobolt:
Scar is pres

CommradePotatoe:
Kk

Astrobolt:
Because we can ig
And it got approved by whoever it was

CommradePotatoe:
Ice carim approved it as the cj

Astrobolt:
Yes
That one

IceCarim:
Lmao

You know, the US constitution nowhere mentions the right to privacy
But everyone has it because “specific guarantees in the bill of rights have penumbras, formed by emanations from those guarantees that help give them life and substance”

s1ice:
of course
why am i not surprised

Astrobolt:
We're just built different like that

CommradePotatoe:
Well anyways this’ll be todays amicus brief:

while I do agree with vortexion’s concerns regarding the idea of a foreign leader being president of CDM, I don’t believe there isn’t any part of the constitution that prevents a foreign leader from running. I believe this to be more of an issue for the National Forum to legislate instead of the Supreme Court.

s1ice:
i think it’s logically stupid but that’s probably just me and my recently-awoken brain being blunt

CommradePotatoe:
At least any part that star and Astro meet in this specific case

IceCarim:
Thank you for this submission. But if we go by your answer here, then we have already accepted the premise that a disqualification can come from outside the specific text of the constitution

CommradePotatoe:
See here

I should have worded better
And also foreign leader doesn't necessarily = threat to the constitution
Both statements can kinda be true
I think

Astrobolt:
Exactly, vort is just villainizing us imo

IceCarim:
The question has become does the spirit created by the text or purpose of the constitution say star and Astro can't run?
Well "say" is maybe the wrongest word lol
And then I have a more practical question

Astrobolt:
I raise another question, does the spirit of the constitution block vort? I think his interests are contrary to the constitution, just like he accused me and scar of

IceCarim:
As Gold points out here, is it actually possible for someone to be the president of cortesia without leading the nation in game?

Astrobolt:
I raise the question of whether vort is eligible. I do not believe he should be able to run. His antics in this court case and his previous antics regarding the swag messiah act show a sense of self over country and I believe it is in the best interest of the court to protect the Constitution from his candidacy

ItsAlreadyGold:
of course he's eligible

Astrobolt:
And if a case like his is being considered, then this must be considered too, even though there is no explicit constitutional basis for either

IceCarim:
Suppose star and Astro are elected. Who leads Cortesia in game?

ItsAlreadyGold:
^
we need to get down to brass tacks and answer that

IceCarim:
We will address this challenge in the course of the judgment

Astrobolt:
That is a matter of logistics, not constitution
The court is far overstepping it's bounds

IceCarim:
@Vortexion (ass edition) I want to afford you an opportunity to answer that

s1ice:
constitutionality isn’t always the only factor in a discussion

ItsAlreadyGold:
How dare you say this, you have been a citizen for 1 or 2 days

Astrobolt:
You're a resident you don't have rights unfortuantely

ItsAlreadyGold:
how can you criticize our esteemed and righteous court
have they ever failed us

IceCarim:
It seems to me that the constitution does address itself to logistical matters

Astrobolt:

Where is this specific logistical matter defined

IceCarim:
(One sec image loading)
Image

Astrobolt:
What does this have to do with what we are talking about

IceCarim:
Potentially two things. First, in-game powers (as in control over the nation) may be necessary to exercise the president's constitutional obligations. And second, the constitution requires that the president in certain cases exercise full control over the nation's apparatuses
By that is meant this discord, for example, or possibly the in-game nation (as formed by commands)

Astrobolt:
Then we'll figure it out
Nothing disqualifying yet

s1ice:
does that mean that if astro and scar get elected as president and VP, they will be required to obtain in-game leadership of the Horizon's End nation, therefore no longer being in-game leaders of Radiance?

IceCarim:
I'm interested in whether that's a requirement
Is it possible for them to be P and VP without being the in-game leader of the nation?
Do the incumbents in that role have any opinion? I'd greatly appreciate your submissions @President @Vice President

Yodabird19:

I think that answering that question satisfactorily would essentially require me to serve the role of chief justice in a hypothetical future court case that hasn't happened
the span of potential interpretations of cortesia's constitutional rules around the president's ownership of auxiliary apparatuses, the dual nationality act, and potential workaround solutions thereto, is large enough that I would not feel comfortable coming down firmly on the side of one specific implementation
I will point out, however, that s149 specifies that an auxiliary apparatus (such as this Discord server, or the in-game nation) may be controlled either by the president or by a state institution given authorization to do so - so the issue could conceivably be sidestepped by simply authorizing an institution (the ministry of the interior comes to mind?) to own such imperiled apparatuses

CommradePotatoe:
Back
Lemme read what I've missed
oh look there is a clause about embassies
ig I should include that in the soon to be reworked embassy act!!!!

IceCarim:
Do we really need a body of rules around auxiliary apparatuses? The issue seems simpler:
The in-game manifestation of the nation is arguably the most important manifestation of the nation (as opposed to the community, for which this discord is the most important platform). Can someone be president — the leader of the nation — without leading us in-game?
If someone is able to be president from afar (by which I mean, performing constitutional responsibilities through an intermediating agent), is that really the office of president as envisaged by the constitution?

CommradePotatoe:
before I respond to this

I want to say, astro, nothing disqualifies anyone until the court reaches a decision

IceCarim:
true. the star/astro ticket remains valid unless otherwise decided

Astrobolt:
Good thing there is no serious constitutional concern then 🙂

IceCarim:
and I'll issue the judgment as a matter of urgency so that you're not prejudiced

CommradePotatoe:
me when I rewrite my arugments 3 times
:ball_legalese:

IceCarim:
commrade darrow

CommradePotatoe:
ill say this now, this is a very complicated issue
I think ill reference cortesian political traditions
its always been the case that the owner of this discord has been the president
if memory serves me correct @IceCarim

IceCarim:
that's true

CommradePotatoe:
did you have control over cortesia's namelayers back on civ?

IceCarim:

I did yeah

CommradePotatoe:
until yoda became president
if yoda say, wasn't able to be on our namelayer for whatever reason
he likely wouldn't have been able to preform even basic security functions
in theory he could delegate that role to someone in this hypothetical
but that would never be a 100% guarantee that he would be carrying out his responsibilities

Astrobolt:
Fortunately the constitution allows for it anyways

CommradePotatoe:
I guess the question Im stuck on is
can someone stand for the presidency, but then also know they cant preform their duties?

Astrobolt:
What duties can we not perform?

CommradePotatoe:
would you be able to say, add someone into the cortesian group astro as vice president?

Astrobolt:
What

CommradePotatoe:
oh right
its all settlement based or whatever
sorry civ brain took over

ItsAlreadyGold:

I trust Star and Astro, though I do not believe someone can effectively run two different nations at once

Astrobolt:
A matter for the people to decide on the election imo

ItsAlreadyGold:
Especially not one as... involved... as cortesia

CommradePotatoe:
if you are in the in game nation of radiance, you can't also be in the in game nation of cortesia right?

Yodabird19:
the answer to this is somewhat more complicated than ice intimated
civ also had restrictions on in-game apparatuses, in the form of a limit on how many namelayer groups one could be primary on
this necessitated people like myself and vedd being authorized to hold some of the namelayer groups once icecarim ran out of primary slots

Astrobolt:
This is correct

Yodabird19:
(of course, the civ case doesn't translate 1:1 to HE, since it was possible to grant owner permissions to people who were not primary on the groups, which is what was done)

CommradePotatoe:
but you could still have admin privilleges on those?
right?

Yodabird19:
this is the entire conundrum the DN act exists to address

CommradePotatoe:
oh yeah

Yodabird19:
unfortunately that act throws up its hands a bit when it comes to the holding of offices by non-primary nationals, and simply invites future legislation to determine that issue

CommradePotatoe:
whoever wrote that act didnt think this through smh

Yodabird19:
yeah we should strangle that guy

IceCarim:
legislation cannot regulate who can run for office

ItsAlreadyGold:
We should yeah

CommradePotatoe:
so would you not be able to preform a function related to that ingame entity?

IceCarim:
Image

Astrobolt:
Then it's a good thing the constitution doesn't say anything against this situation 🙂
See Yoda's previous message re: s149
supreme-court

Yodabird19:

to be more precise, the DN act states that "law may legally distinguish the two...types of Cortesian dual nationals...for the purpose of...designating qualifications for the holding of sensitive public powers"
but no such legislation has actually been passed, so the point is moot
:basically:

CommradePotatoe:
@Chief Justice I have a question, do you think a decision be reached by this court against an outcome of a case, if that outcome threatened the overarching constitutional order, even if the constitution doesn't necessarily have anything against it?

Astrobolt:
This just sounds like legislating from the bench atp

CommradePotatoe:
maybe... that is why I asked

Astrobolt:
💀

CommradePotatoe:
lemme read on the judicial article

Astrobolt:
Let the court interpret the Constitution and let the forum create the laws
This whole thing seems like we're just mixing the two

IceCarim:
I'm inclined to think the answer is no because an outcome cannot threaten the constitution order without the constitution having something against it

CommradePotatoe:
what about the overarching democractic order? or say someones rights?
but then again that might be way over the seperation of powers

as per astros submission

Astrobolt:
The only thing threatening the democratic order here imo is vortexion (ass edition) trying to have the court disqualify other candidates without any constitutional basis

CommradePotatoe:
I disagree, vortexion has valid concerns, and is pursuing them within his rights
whether those concerns are constitutionally valid are to be seen

Astrobolt:
Then if he has no constitutional basis (as he has failed to provide any) he should bring it up with the forum
Or just deal with it

Yodabird19:
it's legal to file a claim with the court that ultimately gets rejected
as long as it was done in reasonably good faith

Astrobolt:
I still don't get how this is even being considered when he has failed multiple times to provide any, even when asked by the court

IceCarim:
im gonna start writing the judgment

Yodabird19:
we eagerly await

Astrobolt:
Excellent
I am looking forward as well to the judgement on my motion to have vort disqualified

IceCarim:
yes that will be decided in the same document

Astrobolt:
Amazing news

CommradePotatoe:
disqualified from, the election, or something else?\
I havent followed everything in this court

IceCarim:
i understand it to be disqualification from the election

Astrobolt:
The election

CommradePotatoe:
alright thanks

Astrobolt:
Effectively the same thing vort wants to happen to me and star
As he believes of us, I believe he is also ineligible under similar reasoning

CommradePotatoe:
@Chief Justice I think you should pursue some questions regarding this motion, I have some that I'd like to ask

IceCarim:
I would gratefully welcome submissions on this question

CommradePotatoe:
is vortexion a foreign leader? AFAIK vortexion is in the ingame nation of CDM

if the general question being asked by this court is whether or not foreign leaders can stand for elections, do you believe Vortexion meets this standard Astro?

Astrobolt:
My similar reasoning I meant mental gymnastics
And the idea that the court should take steps to remove candidates who may act contrary to the preservation of the constitution
Which was brought up as well
Gold medal Olympic gymnast vortexion

CommradePotatoe:
I wonder if this hurtful to your case tho? The point ice made was that, if someone say, said that they were going to kill the constitution, then maaaaybe they could be barred from running?
I think it can be argued that, knowingly running for president, while knowing you cant effiecently preform all duties as president, maaaaay be similar

star_litty:
astro

Astrobolt:
Hiii

star_litty:
Hi
I don’t think vort should be barred from the election for challenging our campaign

Astrobolt:
Neither do i
I'm just being as ridiculous as he is

star_litty:

💀
I think he brings up a fair point but I don’t like the way he went about it
should a nation leader in a separate nation have the right to lead another nation is a good question
however
the slandering was not cool

CommradePotatoe:
Ig Im just pointing out that, motioning to bar someone from the election may be more hurtful than helpful

star_litty:
no one is asking to bar someone

Astrobolt:
The problem I had was that for a nation that cares so much about its constitution, he completely ignored it

star_litty:
me and astro don’t want to bar anyone
okey so VORT doesn’t like us
that’s fine
the constitution doesn’t apply to us apparently

Astrobolt:
First they don't let us vote as residents, now they try to take away our rights as citizens
Smfh

star_litty:
It’s a game

Yodabird19:
(I'm pretty sure vort likes you both as people; he's simply contesting the circumstances of your candidacy)

star_litty:
if he wants me to pull out I will
it was just supposed to be fun

Yodabird19:
Image

star_litty:
but I'm not having fun, my feelings are hurt and I'm getting agitated

CommradePotatoe:
I'd actually be more suprised if this case is found against you guys :redone:

star_litty:
I've tried to just be a chill person and nice
but I'm really feeling upset by all this
so I'll back off and I'll pull out if needed
just wanted to be included in something

CommradePotatoe:
I can't tell you what to do star, but I think you should wait till the court makes its decision
you might have the stronger case here...
I did not delete slices gif I did not delete slices gif I did not delete slices gif I did not delete slices gif

IceCarim:
i want to say that the proceedings, however they come out, do not say anything about you or astro as a person. I'm grateful for your participation in the debate before this court, and it has made for an interesting experience for some of us. but ultimately, the political and legal jiggery-pokery are completely separate from the close friendly relations that cortesians have formed with you, and long may that last

(end)